

16. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NATIONSTAR MORTGAGE LLC
TENTATIVE RULING:

The Court continues the hearing on this motion to 4/23 at 9:00 a.m.

17. 9:00 AM CASE NUMBER: C25-01187
CASE NAME: AHSARFUN HAFIZ VS. AFFINIA DEFAULT SERVICES
HEARING IN RE: JOINDER TO DEMURRER
FILED BY: MERS
TENTATIVE RULING:

The Court continues the hearing on this motion to 4/23 at 9:00 a.m.

18. 9:00 AM CASE NUMBER: C25-01274
CASE NAME: MARK ZUCCA VS. NELLY PICKERT
HEARING ON DEMURRER TO: COMPLAINT OR IN ALT JUDGMENT ON THE PLEADINGS
FILED BY:
TENTATIVE RULING:

After the Court continued the hearing to this date in order to allow parties to meet and confer, parties stipulated to continue their meet and confer deadline to May 14th. Accordingly, the hearing is continued to May 28, 2026 at 9:00 a.m. in this Department. By May 21st, demurring defendants shall file a supplemental declaration concerning the meet and confer process and any agreements reached therein.

19. 9:00 AM CASE NUMBER: C25-01774
CASE NAME: AMIN ANSARI VS. FUTURE AUTOMOTIVE CONCORD, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: FUTURE AUTOMOTIVE CONCORD, INC.
TENTATIVE RULING:

The Motion of Defendants Future Automotive Concord, Inc. and Future Ford of Concord, LLC to Compel Arbitration is granted.

This case is stayed pending the completion of arbitration. (Code Civ. Proc. § 1281.4.)

The case management conference scheduled for May 4, 2026 at 8:30 a.m. is vacated. The Court sets an arbitration status conference for December 3, 2026 at 9:00 a.m. The parties shall submit a joint statement as to the status of the arbitration at least 10 court days before the status conference.

Defendants shall prepare the order and serve and file notice of entry of order.

I. Background

On June 20, 2025, Plaintiff Amin Ansari filed this action against Defendants Future Automotive Concord, Inc. and Future Ford of Concord, LLC. Plaintiff alleges that Defendants collectively own, operate, and manage a car dealership in and around Concord, California, and employed him in the role of General Sales Manager from November 10, 2023 until May 30, 2024 when he was terminated. Plaintiff brings causes of action against Defendants for failure to reimburse business expenses, disability discrimination, failure to take all reasonable steps to prevent or correct discrimination in violation of FEHA, failure to accommodate disability, failure to engage in the interactive process, and wrongful termination.

As part of an onboarding process, Plaintiff signed an arbitration agreement twice: first electronically on November 7, 2023, and again in hard copy with a wet signature on November 10, 2023 (the "Agreement"). The Agreement requires that all claims arising out of the employment context be pursued exclusively through binding arbitration, including claims under FEHA, the ADA, and Title VII, with limited exceptions for claims before the NLRB, workers' compensation and EDD claims, and, at the employee's election, sexual harassment and sexual assault disputes. The Agreement provides that it is governed by the Federal Arbitration Act ("FAA"), supplemented by the California Arbitration Act ("CAA") to the extent consistent with the FAA.

On October 9, 2025, Defendants filed this motion to compel arbitration. Plaintiff opposes.

II. Legal Standard

Under California and federal law, public policy favors arbitration as an efficient and less expensive means of resolving private disputes. (*Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 8-9.) Accordingly, whether an agreement is governed by the CAA or the FAA, courts resolve doubts about an arbitration agreement's scope in favor of arbitration. (*Id.* at 9; see also *Engalla v. Permanente Med. Grp., Inc.* (1997) 15 Cal.4th 951, 971-972.) "[U]nder both the FAA and California law, 'arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.'" (*Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1247.)

"Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration if the court determines that an agreement to arbitrate the controversy exists." The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (*Engalla, supra*, 15 Cal.4th 951, 972.) It is then the plaintiff's burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to her opposition. (*Ibid.*)

III. Analysis

The existence of the arbitration agreement, its coverage of Plaintiff's claims, and the applicability of the FAA are undisputed. The issues presented are whether Defendants waived their right to compel arbitration and whether the Agreement is unconscionable.

A. Waiver

"To establish waiver under generally applicable contract law, the party opposing enforcement of a

contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. [Citations.] Under the clear and convincing evidence standard, the proponent of a fact must show that it is 'highly probable' the fact is true. [Citation.] The waiving party's knowledge of the right may be 'actual or constructive.' [Citation.] Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it." (*Quach v. Cal. Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584; see also *Morgan v. Sundance, Inc.* (2022) 596 U.S. 411, 419 [Under the FAA, the waiver inquiry focuses on the conduct of the party seeking to enforce the arbitration agreement and asks whether the party "knowingly relinquish[ed] the right to arbitrate by acting inconsistently with that right"].)

Plaintiff contends that Defendants waived the right to arbitration because after he sent his prelitigation demand for arbitration on May 13, 2025, Defendants refused service of the demand, took no action, and said nothing in response, which prompted Plaintiff to file this action. (Martinez Decl. ¶¶ 3-6 and Exhs. B, C.)

Defendants' argue that failure to respond to a prelitigation demand for arbitration is not inconsistent with an intent to demand arbitration once litigation was filed. They state that upon receiving Plaintiff's arbitration demand, they retained counsel and reached out to Plaintiff on June 25, 2025. After the complaint was served on July 10, 2025, Defendants initiated arbitration discussions on July 18, confirming with Plaintiff's counsel that no arbitration had been filed. On August 15, 2025, Defendants provided Plaintiff with a copy of the signed Agreement and proposed stipulating to dismiss the complaint and submit the matter to arbitration. Receiving no response, Defendants filed their Answer on August 28, 2025, asserting the arbitration agreement as an affirmative defense. On September 15, 2025, Defendants again proposed stipulating to arbitrate and requested legal authority for Plaintiff's waiver position. On September 19, Defendants cited the Agreement's meet and confer provision and requested that both sides exchange lists of proposed arbitrators. On September 25, Defendants provided their proposed list. Defendants neither propounded nor responded to any discovery. (Declaration of Yuri Khadka ¶¶ 3-17, Exhs. A-P.)

Plaintiff cites no authority for the proposition that failing to initiate arbitration proceedings in response to a prelitigation demand constitutes waiver. Even if Defendants' failure to respond directly to the demand could be viewed in isolation as inconsistent with an intent to arbitrate, the record as a whole does not establish waiver by clear and convincing evidence. The Court therefore finds that Defendants have not waived their right to arbitrate.

B. Unconscionability

Unconscionability refers to "an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal. 4th 899, 910 (*Sanchez*)). Unconscionability has both procedural and substantive elements and "is a valid reason for refusing to enforce an arbitration agreement." (*Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*)). Both procedural and substantive unconscionability must be present before a court may refuse to enforce a contract, but they need not be present to the same degree. (*Ibid.*) A sliding scale applies such that "the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable,

and vice versa." (*Ibid.*)

1. Procedural Unconscionability

Plaintiff contends the Agreement is procedurally unconscionable because it is a contract of adhesion and he had no meaningful opportunity to negotiate it. This claim involves the oppression aspect of procedural unconscionability.

"Arbitration contracts imposed as a condition of employment are typically adhesive, and the agreement here is no exception. The pertinent question, then, is whether circumstances of the contract's formation created such oppression or surprise that closer scrutiny of its overall fairness is required." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*).)

"The circumstances relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party's review of the proposed contract was aided by an attorney." (*Id.* at pp. 126-127.)

When arbitration is a condition of employment, there is inherently economic pressure on the employee to accept arbitration. This alone is a fairly low level of procedural unconscionability. (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 174-175 [procedural unconscionability limited where arbitration provisions were in a stand-alone two-page document titled "MANDATORY ARBITRATION POLICY"]; *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1245 [procedural unconscionability limited where employee knew about arbitration provision and was not manipulated into signing it].)

Plaintiff does not identify any circumstances which created additional pressure. In *OTO*, for example, the employer presented the employee with the arbitration agreement during the workday and the employee lost pay for the time spent reviewing it. The employer representative waited while the employee signed, creating an expectation of immediate execution and making it extremely difficult to consult an attorney. (*OTO, supra*, 8 Cal.5th at pp. 127-128.)

Here, Plaintiff was provided access to the arbitration agreement through HRHotlink before his first day of work and signed it electronically on November 7, 2023 using his personal username and password, presumably in a setting of his own choosing, and no time pressure. He says nothing about the circumstances surrounding that first signing and does not claim he was rushed, pressured, or prevented in any way from reviewing the agreement before executing it electronically. Although he was asked to sign a printed copy on November 10, his first day of work, he had already had the opportunity to review the Agreement days earlier.

Plaintiff also addresses the physical aspects of the Agreement as being oppressive. The Court in *OTO* found surprise where the agreement was "a paragon of prolixity, only slightly more than a page long but written in an extremely small font," with a "single dense paragraph covering arbitration requir[ing] 51 lines," text that was "visually impenetrable" and challenged "the limits of legibility." (*OTO, supra*, 8 Cal.5th at p. 128.)

The requirement of surprise is not satisfied. The Agreement is neither hidden in a prolix form, nor

drafted in fine print. It is a four-page, separately formatted, standalone document with numbered paragraphs, bold headings, and prominent all-caps warnings at both the top and bottom of the document. The Agreement is clearly titled "HANDBOOK ACKNOWLEDGMENT AT WILL AND ARBITRATION AGREEMENT" in boldface, all-caps type and opens with the following bold heading:

IMPORTANT— READ CAREFULLY

THIS AGREEMENT CONTAINS AN AT-WILL AGREEMENT AND BINDING ARBITRATION AGREEMENT

(Pelzl-Sisneroz Decl., Exh. C.)

The Agreement concludes with the following all-caps language immediately above the signature line:

I UNDERSTAND THAT I AM GIVING UP THE RIGHT TO TRIAL BY JURY, BY A SITTING TRIAL COURT JUDGE AND/OR BY FINAL ADJUDICATION THROUGH AN ADMINISTRATIVE PROCESS BY AGREEING TO BINDING ARBITRATION.

MY SIGNATURE BELOW ATTESTS TO THE FACT THAT I HAVE BEEN GIVEN AN OPPORTUNITY TO READ AND CONSIDER THIS AGREEMENT, AND THAT I HAVE READ, UNDERSTAND, AND AGREE TO BE LEGALLY BOUND BY ALL OF THE ABOVE TERMS. I AGREE THAT THE COMPANY IS BINDING ITSELF TO THIS AGREEMENT BY PRESENTING THIS AGREEMENT TO ME FOR SIGNATURE.

DO NOT SIGN UNTIL YOU HAVE READ THE ABOVE ACKNOWLEDGMENT AND AGREEMENT.

(*Id.*)

The Court in *OTO* also found surprise because the arbitration agreement contained complex sentences, statutory references, and legal jargon, including one sentence that was 12 lines long. There are no such lengthy sentences in the Agreement here. While it does contain statutory references, those references are necessary to define the claims covered by arbitration. The Agreement uses clear language to describe the binding nature of the arbitration obligation and the waiver of the right to bring claims in court and to have a trial by jury, a point made prominently in the all-caps language quoted above.

The Court finds only a minimal degree of procedural unconscionability due to the adhesive nature of the Agreement.

2. Substantive Unconscionability

"Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh." (*Carmona v. Lincoln Millennium Car Wash, Inc.*, (2014) 226 Cal.App.4th 74, 85.) The "paramount consideration" is the mutuality of the obligation to arbitrate. (*Nyulassy v. Lockheed Martin Corp.* (2004) 120 Cal.App.4th 1267, 1287.) An arbitration agreement "lacks basic fairness and mutuality if it requires one contracting party, but not the other, to arbitrate all claims arising out of the same transaction or occurrence or series of transactions or occurrences." (*Armendariz, supra*, 24 Cal.4th at p. 120.)

a. Mutuality

Plaintiff first argues the Agreement is substantively unconscionable because it lacks mutuality. Plaintiff asserts this argument with respect to both Exhibit B to the Pelzl-Sisneroz Declaration, the arbitration agreement he signed as part of the application process, and Exhibit C, the handbook acknowledgment he signed upon hire. Defendants move to compel arbitration under Exhibit C, not the application-stage agreement, so the enforceability of Exhibit B is not at issue.

Plaintiff's mutuality argument with regard to Exhibit C appears to be the following: the Agreement refers to "the Company" as the counterparty throughout but never identifies which entity "the Company" is. The signature block has a space for a company representative to sign, and the Agreement is signed by "Tamara Watkins." Plaintiff appears to assert that because no representative of a named entity signed it, there is no way to know which entity is actually bound. And if no specific entity is bound, the Agreement lacks mutuality because it obligates Plaintiff to arbitrate all of his claims but does not actually obligate any identifiable counterparty to do the same.

The Agreement is mutual on its face. It states: "the Company agrees to pursue any claims it might have against me that currently exist or that may arise in the future exclusively through binding arbitration," mirroring the identical obligation imposed on Plaintiff. (Pelzl-Sisneroz Decl., Ex. C.) The Agreement further provides that "[o]ur agreement to arbitrate includes any and all claims which arise out of the employment context or any other interaction/relationship we had, have or may have in the future," and that "[o]ur agreement to submit all claims to binding arbitration includes any claims that either of us may have against any third-party beneficiaries." The Agreement recites that "[b]y agreeing to binding arbitration, we waive our rights to any and all claims decided in an administrative hearing, in a judge/bench trial, and/or in a jury trial." Repeated use of "we," "our," and "us" throughout the Agreement, including the statement that "Company is binding itself to this agreement by presenting this agreement...for signature" demonstrates that both parties waived the same rights and are bound to arbitrate claims arising out of the employment relationship.

Plaintiff relies on *Najarro v. Superior Court* (2021) 70 Cal.App.5th 871 to support his argument that the Agreement lacks mutuality, but that case is distinguishable. The lack of mutuality discussion in *Najarro* concerned "Version One" of two arbitration agreements at issue, which had two defects: none of the real parties in interest signed it, and it did not even purport to identify who the employee's counterparty was supposed to be. Neither defect is present here. Tamara Watkins signed the Agreement as the authorized company representative, and it expressly states that the Company binds itself by presenting the agreement for signature. An authorized representative can only act on behalf of a specific principal, and the Pelzl-Sisneroz declaration identifies that principal as Future Automotive of Concord, the entity that employed Plaintiff and deposited the Agreement in his file.

b. Attorney Fees

Plaintiff next argues the Agreement is substantively unconscionable because it "does not provide that the prevailing party shall be entitled to recover attorneys' fees," thereby waiving Plaintiff's right to statutory fees under FEHA. Under FEHA, an arbitration agreement cannot serve as a vehicle for the waiver of statutory rights, including the right to attorney fees. (*Armendariz, supra*, 24 Cal.4th at 101; Gov. Code, § 12965(c)(6) [prevailing party may be awarded reasonable attorney's fees and costs, though a prevailing defendant is entitled to fees only if the action is frivolous].)

The Agreement provides that the arbitrator shall have "the authority to fashion the arbitration proceeding and the award to preserve any special protections afforded by the laws governing the claims," and "shall apply only the law governing the claims and defenses pleaded." (Pelzl-Sisneroz

Decl., Exh. C, ¶ 8.) These provisions require the arbitrator to follow governing law in fashioning any award, including FEHA's fee-shifting provision, and do not operate to deprive Plaintiff of any unwaivable statutory remedy.

IV. Disposition

Plaintiff has not shown a waiver of the right to arbitrate. The Court finds only minimal procedural unconscionability arising from the adhesive nature of the Agreement, and no substantive unconscionability. Because Plaintiff has failed to establish both elements, an unconscionability defense fails. The motion is therefore granted, and Plaintiff's claims are ordered to arbitration. This action is stayed pending the completion of that process.

20. 9:00 AM CASE NUMBER: C25-02337

CASE NAME: JOSE BARRERA GALEANA VS. BRANT ADERMAN

***HEARING ON MOTION IN RE: ORDER GRANTING PROPOSED INTERVENOR GREAT WEST CASUALTY COMPANY LEAVE OF COURT TO INTERVENE**

FILED BY: GREAT WEST CASUALTY COMPANY

TENTATIVE RULING:

Great West Casualty Company seeks leave of the Court to intervene in this matter, pursuant to Code of Civil Procedure section 387. The Court received no opposition.

Plaintiffs Jose Barrera Galeana and Leticia Perez-Romo filed a lawsuit arising out of a motor vehicle collision on November 16, 2023. Named Defendants are Brant Aderman and Brant Aderman Trucking, LLC. The vehicle driven by Defendant Aderman was owned by Defendant Aderman Trucking, and was insured by the proposed Intervenor, Great West. Since the incident, Defendant Aderman Trucking was administratively dissolved by California's Secretary of State. While Defendant Aderman has filed an Answer in this matter, Defendant Aderman Trucking has not, and Great West seeks to intervene so it can defend this lawsuit on Defendant Aderman Trucking's behalf.

Great West has attached a proposed Answer in Intervention. Code Civ. Pro. § 387(c). Great West has moved in a timely manner. Code Civ. Pro. § 387(d). Finally, Great West asserts a valid reason for intervention. Code Civ. Pro. § 387(d)(1)(B). The Motion is therefore **granted**.

21. 9:00 AM CASE NUMBER: C25-02823

CASE NAME: TAMARA ZABLOCKI VS. JEARALDIN ALTOBAR

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: ALTOBAR, JEARALDIN

TENTATIVE RULING:

The Court continues the hearing on this motion to May 7, 2026 at 9:00 a.m.

22. 9:00 AM CASE NUMBER: N25-2373

CASE NAME: PETITION OF:WHITE GATE HOMEOWNERS CORPORATION

HEARING IN RE: PETITION SET AT EX-PARTE REQUEST

FILED BY: